

M/S Shri Parasnath Alloys (Pvt.) Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd. & Ors.

Allahabad High Court · Division Bench · 17 April 2013 · WRIT - C No. 58652 of 2012 · **Writ petition dismissed**

HEADNOTE

Under Clause 3.4(d)(ii) of the U.P. Electricity Supply Code, 2005, the consent required before the licensee permits another consumer to tap an independent feeder (for Arc/Induction Furnaces, Rolling Mills, Re-rolling Mills and Mini Steel Plants) is the consent of the 'original consumer' — i.e. the consumer at whose instance and cost the independent feeder itself was constructed — not of every subsequent consumer who was merely permitted to tap the already-constructed feeder on paying only the cost of the connecting line from the tapping (T-off) point to its own premises. A consumer who bore only the connection-line cost (not the feeder's own construction cost) does not thereby become a co-original-consumer whose consent is required for further downstream tapping to other similar-process consumers; that status, and the corresponding consent right, is confined to the party that actually funded the independent feeder's construction (distinguishing Kesarwani Sheetalaya, where the objecting consumer had itself obtained the original consumer's consent and shared the feeder's construction cost).

HOLDING-UNITS

HOLDING-UNIT · UP-2005::3.4

Only the consumer who funded construction of the independent feeder itself is the 'original consumer' whose consent is needed for further tapping; a mere connecting-line-cost-bearing tapping consumer is not

QUESTION

Where several consumers (having a similar furnace/rolling-mill process) are successively permitted to tap an already-constructed independent feeder, paying only the cost of their own connecting line from the tapping point, must the licensee obtain the consent of an earlier tapping consumer (who never funded the feeder itself) before permitting a further consumer to tap the same feeder, under Clause 3.4(d)(ii)?

HOLDING

No. The 'original consumer' whose consent is required under Clause 3.4(d)(ii) is the consumer at whose instance and cost the independent feeder itself was constructed — here, the consumer that paid the entire feeder-construction cost (over Rs. 1.25 crore) and was sanctioned load first. Subsequent consumers permitted to tap the feeder, who bore only the cost of their own connecting line (not the feeder's construction), do not thereby acquire 'original consumer' status or a consent right over further tapping; nor is there evidence that the petitioner itself obtained the true original consumer's consent, which would be necessary to stand in its shoes (as in Kesarwani Sheetalaya, factually distinguishable since there the objecting party had obtained consent from, and shared cost with, the true original consumer). Since the true original consumer raised no objection to the further sanction, and was not even a party to the writ, the petitioner (itself only a downstream tapping consumer) had no justiciable ground to object to a further consumer's tapping of the same feeder. ¶ [unnumbered order](#)

LIMITING FACTS

An independent feeder ('Siddhbali feeder') was constructed at the sole cost of M/s Shree Siddhbali Steels Ltd. (sanctioned first, 2.4.2009); the petitioner and two other similar-process units were subsequently sanctioned load from the same feeder by tapping, each bearing only the cost of its own connecting line (not the feeder's construction); when a fourth consumer, respondent no.3, was similarly sanctioned load by tapping (5.9.2012), the petitioner objected for want of its own consent under Clause 3.4(d)(ii), without ever having obtained or pleaded consent from the true original consumer (Siddhbali Steels, which itself raised no objection and was not a party).

PRINCIPLE TAGS

independent-feeder-original-consumer-consent Clause 3.4(d)(ii)'s consent requirement for tapping an independent feeder runs to the consumer who funded the feeder's construction (the 'original consumer'), not to every downstream tapping consumer who paid only its own connecting-line cost; a downstream consumer can acquire a consent right only by itself having obtained

the true original consumer's consent and shared the feeder's cost (Kesarwani Sheetalaya). Lead authorities: *M/s Kesarwani Sheetalaya & Others v. Purvanchal Vidyut Vitran Nigam Ltd. & Others, M/s Shiv Flour and Rice Mills v. State of U.P. & Others* [477172]. ¶ [unnumbered order](#)

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>M/s Kesarwani Sheetalaya & Others v. Purvanchal Vidyut Vitran Nigam Ltd. & Others</i> Civil Misc. Writ Petition No. 2309 of 2009, decided 9.10.2009 Allahabad High Court (DB)	Where a tapping consumer had itself obtained the original consumer's consent and shared the feeder's construction cost, it stands at par with the original consumer, and a further connection through tapping to another consumer without ITS consent violates Clause 3.4(d)(ii).	Distinguished — the petitioner here had not obtained the true original consumer's consent or shared the feeder's own construction cost, unlike the petitioners in Kesarwani Sheetalaya. ¶ unnumbered order	Petitioner	Distinguished
<i>M/s Shiv Flour and Rice Mills v. State of U.P. & Others</i> Civil Misc. Writ Petition No. 32927 of 2003 [477172] Allahabad High Court	Distinguishes 'service line' (Para 2.2(bb)) from 'independent feeder' (Para 2.2(ff)); without fulfilling Clause 3.4(d)'s conditions, the licensee cannot allow tapping of an independent feeder to supply another consumer running an arc/induction furnace, rolling mill or steel plant.	Cited alongside Kesarwani Sheetalaya for the general Clause 3.4/consent framework; the petitioner's reliance nonetheless failed on the 'original consumer' facts. ¶ unnumbered order	Petitioner	Referred
<i>Chandu Khamaru v. Nayan Malik & Others</i> (2011) 12 SCC 314 [864936] Supreme Court	A consumer has a statutory right under the Electricity Act, 2003 to apply for and obtain a supply of electricity, and the distribution licensee has a corresponding statutory obligation to supply it, notwithstanding a private dispute over the passage/right of way for the line.	Relied on by the successful respondent to support the statutory right to obtain a fresh connection/tapping. ¶ unnumbered order	Respondent	Relied on
<i>Punjab State Electricity Board Ltd. v. Zora Singh & Others</i> JT 2005 (7) SC 258 [1101587] Supreme Court	The Board must supply electrical energy to consumers within a reasonable period, in order of seniority of application, per its own circulars/regulations, and must notify applicants of reasons for any delay.	Relied on by the successful respondent to reinforce the statutory duty to supply on request. ¶ unnumbered order	Respondent	Relied on